Integrated Judiciary

"The Indian Federation, though a dual polity, has no dual judiciary at all. The High Courts and The Supreme Court Constitute one single integrated judiciary having jurisdiction and providing remedies in all cases under the Constitutional law, The Civil law or the criminal law. This is done to eliminate all diversities in a remedial procedure"

-Dr. B. R. Ambedkar

Jurisdiction and Powers on the Supreme Court: The Supreme Court has original, appellate and advisory jurisdiction. The original jurisdiction of the Supreme Court extends to all cases which can originate in the Supreme Court. These include disputes between the Government of India and one or more States, or between two or more States. In disputes involving fundamental rights, the Supreme Courts has both original and appellate jurisdiction. It can issue Writs of Habeas Corpus, Writ of Mandamus, Writ of prohibition, Writ of Certiorari and the Writ of Quo warranto.

The Supreme Court is the highest or Apex appellate Court in India, where appeals against judgments of High Courts can be made; (in both civil and criminal cases)

The Supreme Court of India has also been vested with certain Advisory Powers. The President can seek its advice on any legislative measure. However, the advice of the Supreme Court is not binding on the President (Article - 143).

The Supreme Court functions as the guardian of the Constitution; It is the final authority to interpret the Constitutional law, and has the authority to declare any law or executive action, or judgments of lower Courts 'null and void' if the Supreme Court find them against the letter and spirit of the Constitution. It is also the apex agency to safeguard the fundamental rights listed out in the Constitution.

Debate

Topic : Justice delayed is justice denied

Justice comes slowly in smaller courts, with 2.91 crore cases pending

- With more than 8 lakh cases pending in district and subordinate courts, Uttar Pradesh tops the list of States with the highest number of decade-old-court cases.
- As per the National Judicial Data Grid, there are 2.91 crore cases pending in district and subordinate courts, out of which 21.90 lakh cases are pending for more than 10 years.
- Uttar Pradesh is followed by Bihar, with more than 3 lakh pending cases, and Maharashtra with over 2 lakh cases. Sikkim and Andaman and Nicobar are at the bottom with two and no pending cases, respectively.
- Teacher can organise a Critical Debate on "Justice delayed is justice denied". Learners can be divided into two groups. One group may justify the topic and another group may disagree.

Organization of the Supreme Court

The Supreme Court of India has been established by Part V, Chapter IV

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